

MUTUAL NON-DISCLOSURE AGREEMENT

Strictly Confidential | Ref: BFAI-NDA-2024-0042

PARTIES

This Mutual Non-Disclosure Agreement ('Agreement') is entered into on 15 November 2024 between:

Disclosing Party 1: BFAI Technologies Pvt Ltd, Suite 7, Tech Tower, Bengaluru 560001 ('BFAI'); and

Disclosing Party 2: NovaMed Healthcare Analytics Pvt Ltd, 33 Wellness Hub, Mumbai 400070 ('NovaMed').

Both parties may be collectively referred to as 'the Parties' or individually as a 'Party'.

PURPOSE

The Parties intend to explore a potential business partnership for integrating BFAI's document intelligence platform with NovaMed's clinical data management system (the 'Proposed Transaction'). Each Party may disclose Confidential Information solely to evaluate the Proposed Transaction.

DEFINITION OF CONFIDENTIAL INFORMATION

Confidential Information means any non-public information disclosed by either Party including but not limited to: technical specifications, source code, ML model architectures, training datasets, patient data schemas, financial projections, customer lists, pricing strategies, and business plans, whether disclosed orally, in writing, or in any other medium, and whether or not marked 'confidential'. Excluded: information that is publicly known, independently developed, or disclosed by a third party lawfully.

OBLIGATIONS

Each Party agrees to: (a) hold Confidential Information in strict confidence using at least the same degree of care as it uses for its own confidential information (but not less than reasonable care); (b) not disclose Confidential Information to any third party without prior written consent; (c) use Confidential Information solely for evaluating the Proposed Transaction; (d) limit access to employees and advisors on a strict need-to-know basis who are bound by confidentiality obligations no less restrictive than those in this Agreement.

TERM

This Agreement is effective from the date first written above and continues for a period of 3 (three) years, or until the Parties execute a definitive agreement, whichever occurs first. Obligations of confidentiality survive expiry or termination for a further 5 years with respect to trade secrets and personal health information.

RETURN OF INFORMATION

Upon written request, each Party shall promptly return or certifiably destroy all Confidential Information received, including copies and extracts in any medium, within 10 business days. One archival copy may be retained by legal counsel solely for compliance purposes.

REMEDIES

Each Party acknowledges that breach of this Agreement may cause irreparable harm for which monetary damages may be inadequate. Accordingly, either Party may seek injunctive or equitable relief in addition to any other remedies available at law.

GOVERNING LAW

This Agreement shall be governed by the laws of India. Jurisdiction: courts of Bengaluru, Karnataka.

Signed for BFAI Technologies:

Rohit Verma, CEO
Date: 15/11/2024

Signed for NovaMed Healthcare Analytics:

Dr. Kavita Menon, COO
Date: 15/11/2024